

The *Privette* doctrine states that generally, a person who hired an independent contractor is generally not liable to an employee of the independent contractor when they are injured on the job. (*Privette v. Superior Court* (1993) 5 Cal.4th 689, 693.) However, there are a multitude of exceptions to the general rule. (*Secci v. United Independent Taxi Drivers, Inc.* (2017) 8 Cal.App.5th 846, 859.) One exception is where a landowner fails to disclose a concealed hazard to the contractor. (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 674.) Another exception exists where a hirer who retains control of any part of an independent contractor's work may be liable for physical harm to others caused by the failure to exercise that control with reasonable care. (*Hooker v. Department of Transp.* (2002) 27 Cal.4th 198, 206.) Tort liability will be imposed on the hirer if the hirer exercised control that affirmatively contributed to the injury of the contractor's employee. (*Id.* at 210-211.)

Here, Plaintiffs allege that "Defendants negligently, carelessly, and recklessly maintained the premises in a dangerous and unsafe condition by allowing a dangerous condition to exist on the premises – exposed, energized electrical wiring and/or metal brackets operating as concealed conduits," and "knew, or in the exercise of reasonable care should have known, of the dangerous condition and failed to remedy it or warn persons lawfully on the property." (FAC, ¶ 39-40.) Plaintiffs further allege that Defendants "retained control over safety conditions on their respective property" and "either create[ed] work conditions that were inherently unsafe for those performing insulation installation at The Subject Property, and/or [failed] to create, modify, communicate, impose, and/or enforce adequate safety measures for such work." (FAC, ¶ 25.) Because the allegations in the FAC support the existence of several exceptions to the *Privette* doctrine, Defendant has not demonstrated that *Privette* applies on demurrer.

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CASE #	CASE NAME	HEARING NAME
CVPS2601027	CONCEPT IN TIME INTERVAL OWNERS ASSOCIATION VS ONWERS 1-162	MOTION FOR LEAVE TO INTERVENE BY VILLA MYKONOS, LLC

Tentative Ruling: Granted.

No opposition filed.

Moving party, Villa Mykonos, LLC is granted leave to intervene and must file their proposed Complaint in Intervention within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.